

ARTICLE 3

STREETS, ROADS & DRIVEWAYS

1. GENERAL

A. PURPOSE

1. To establish a context-based classification of streets, roads, and driveways calibrated to the Districts of this Code.
2. To require that new streets, roads, and driveways are designed in a manner that supports and reinforces the character of the District in which they are located.
3. To provide a method for classifying existing streets and roads into the Street/Road Types defined herein.
4. To resolve design conflicts between vehicular and pedestrian movement in favor of the pedestrian within urban Districts, and in favor of the vehicle within rural Districts.
5. To distinguish between the form and character of a street or road (regulated by this Article) and its statutory ownership and maintenance status (governed by Title 23 of the Maine Revised Statutes).
6. To absorb, calibrate, and supersede the Newcastle Road, Driveway, and Entrance Ordinance adopted November 3, 2020, which is repealed concurrent with the adoption of this Article.

B. APPLICABILITY

1. Unless otherwise specified, this Article is applicable to all streets, roads, and driveways throughout the Town of Newcastle.
2. Applies to each new street, road, driveway, and entrance that connects to a public way, and to the alteration, enlargement, reconstruction, or discontinuance of an existing street, road, driveway, or entrance on or after the effective date of this Article.
3. Applies to the classification of existing streets and roads in accordance with Section 5 of this Article.
4. If a permit or approval is required under this Article, no earth moving or construction may occur prior to obtaining that permit or approval.

C. AUTHORITY

1. This Article is adopted under the Municipal Home Rule Powers of the Maine Constitution, Article VIII-A and 30-A MRSA Chapter 141, and Chapter 187, and under the authority granted by the Town Meeting that ratified this amendment.

D. COMPLIANCE

1. No street, road, driveway, entrance, or other improvement within the limits of the right-of-way for any public or approved private road or street may be constructed, altered, or relocated except in accordance with this Article.
2. This Article allows waivers from its standards as explicitly authorized within this Article if the Permitting Authority determines that:
 - a. Allowance of the waiver is consistent with the purpose of this Article; and
 - b. The waiver does not exceed the allowed metric variations or qualitative criteria described in the section where the waiver is authorized.

3. Allowance of a waiver under this Article is considered an integral part of the application of this Article and is not considered the granting of a variance, as that term is defined under Maine law.

E. RELATIONSHIP TO OTHER STANDARDS

1. This Article does not abrogate, annul, or otherwise interfere with any easement, covenant, or other private agreement.
2. Where the standards of this Article impose a greater restriction than required by other ordinances, regulations, resolutions, rules, easements, covenants, or agreements, the provision of this Article must apply.
3. The standards of this Article must take precedence over those of other codes, ordinances, regulations, and standards that may be in conflict with this Article, except as provided in Section 12 with respect to state-aid roads.
4. All development activity must comply with relevant Federal and State law and regulations. Where there is a conflict between this Article and the standards of a Federal or State law, Federal or State law supersedes the standards of this Article.

2. STREET & ROAD TYPES

A. PURPOSE

1. To establish a system of named Street and Road Types whose standards reinforce the character of each District.
2. To enable a single classification — the Type — to serve both as a design specification for new construction and as a designation for existing streets and roads.
3. To order the public realm on a continuum from most urban (Main Street) to most rural (Rural Road and Rural Lane), with Driveway designated as the smallest form of vehicular access.

B. APPLICABILITY

1. Every street and road within the Town of Newcastle is assigned one Type from the system in this Section, in accordance with Section 5 (Classification of Existing Streets & Roads) or Section 6 (New Streets & Roads).
2. Every Driveway is regulated as a Driveway under Section 7, calibrated by the District in which the driveway is located.

C. GENERAL

1. The Street/Road Types are organized in two families:
 - a. The **Street family** (S-1 through S-5) contains Types whose character emphasizes pedestrian comfort, defined frontages, and lower design speeds. Street Types are intended for the more urban Districts.
 - b. The **Road family** (R-1 through R-5) contains Types whose character emphasizes vehicular movement, working landscapes, and higher design speeds. Road Types are intended for the more rural Districts and for state-aid highway corridors.
2. The Driveway (D) is a third category, distinct from the Street and Road families, and provides private access from a Street or Road to a single lot.

3. Within Types S-1 through S-5 and R-1 through R-5, pedestrian comfort considerations are weighted as follows: in Types S-1 through S-4, pedestrian comfort is a primary consideration. In Types S-5 (Alley), R-1, R-2, and R-3, pedestrian comfort is a secondary consideration but is not eliminated. In Types R-4 and R-5, vehicular movement is the primary consideration consistent with Maine Department of Transportation classification of the corridor.
4. The full design standards for each Type are stated on that Type's page, which follows in this Section. The sight-distance standards of Section 8 and the construction specifications of Section 11 are referenced on each Type's page and stated in full in those Sections.
5. A full page for each numbered Type (S-1 through S-5 and R-1 through R-5) follows in this Section. Each Type page states that Type's description, target Districts, character, and design standards, and includes an illustrative cross-section showing the representative arrangement and typical widths of the Type's right-of-way components. The cross-section illustration is representative; the design standards stated on the page govern. No Type page is provided for the Driveway (D), which is not a Street or Road Type and is regulated under Section 7.

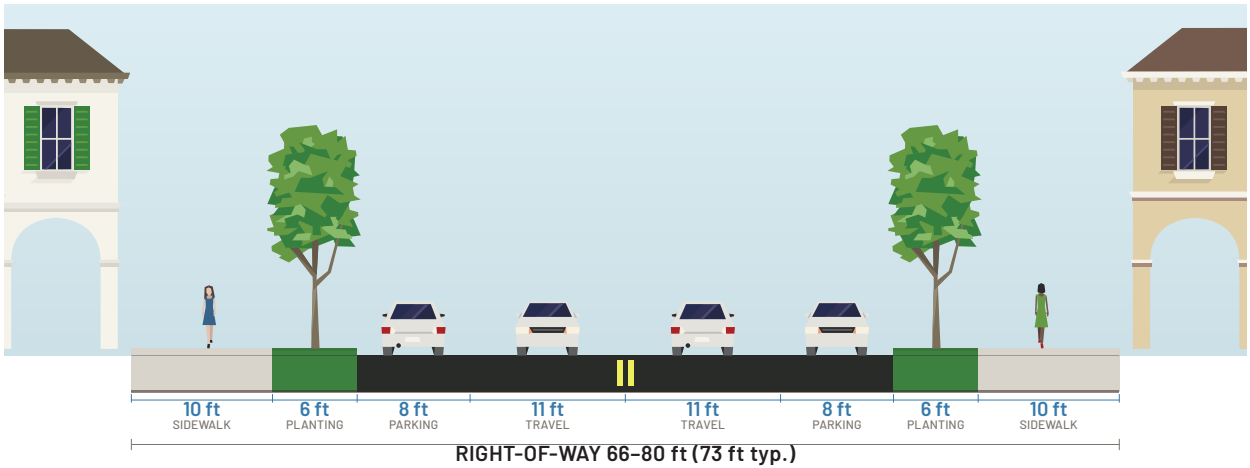
MAIN STREET

S-1

STREET TYPE - D6 Town Center - designated D5 segments

The most urban Street Type — the central organizing thoroughfare of the Town Center, with continuous building streetwalls, active ground-floor uses, wide sidewalks, on-street parking both sides, and the lowest design speed in the typology.

Shopfront Required: a street classified S-1 is a Shopfront Required street under Article 2 §4.C, subsuming the separate Shopfront Required overlay shown on the District Map.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	66-80 ft	Design speed	20 mph
Traveled way	20-22 ft - 2 lanes @ 10-11 ft	Max. grade	6%
On-street parking	Both sides - 7-8 ft	Max. block length	400 ft
Curb	Vertical	Curb return radius	10-15 ft
Planting strip	5-8 ft, both sides	Sight distance	Per Table 3.2
Sidewalk	8-12 ft, both sides	Pavement	Per Table 3.3
Street trees	Required	Surface	Paved

TARGET DISTRICTS

- D6 Town Center
- Designated D5 Village Business segments

CHARACTER

- Buildings at the 0 ft setback line
- On-street parking buffers the sidewalk from traffic
- Planting strip and street trees both sides
- Narrow travel lanes calm traffic
- Rear-lot service via a Lane (S-4) or Alley (S-5)

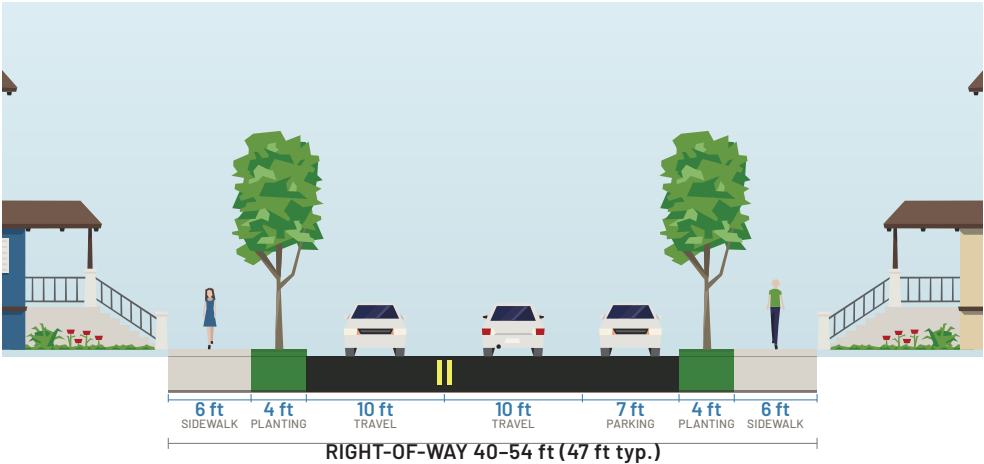
S-2

VILLAGE STREET

STREET TYPE · D5 Village Business · edges of D6 · SD-Historic core

A village-center Street with mixed-use frontages, sidewalks both sides, and on-street parking on at least one side, at a design speed suited to pedestrian-prioritized village streets.

Shopfront by designation: an S-2 segment may be designated Shopfront Required on the District Map and is then subject to the shopfront standards of Article 5 §12.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	40-54 ft	Design speed	25 mph
Traveled way	20 ft · 2 lanes @ 10 ft	Max. grade	8%
On-street parking	One side · 7-8 ft	Max. block length	500 ft
Curb	Vertical or rolled	Curb return radius	15-20 ft
Planting strip	Optional, both sides	Sight distance	Per Table 3.2
Sidewalk	5 ft min, both sides	Pavement	Per Table 3.3
Street trees	Required	Surface	Paved

TARGET DISTRICTS

- D5 Village Business
- Edges of D6 Town Center
- Central segments of SD-Historic

CHARACTER

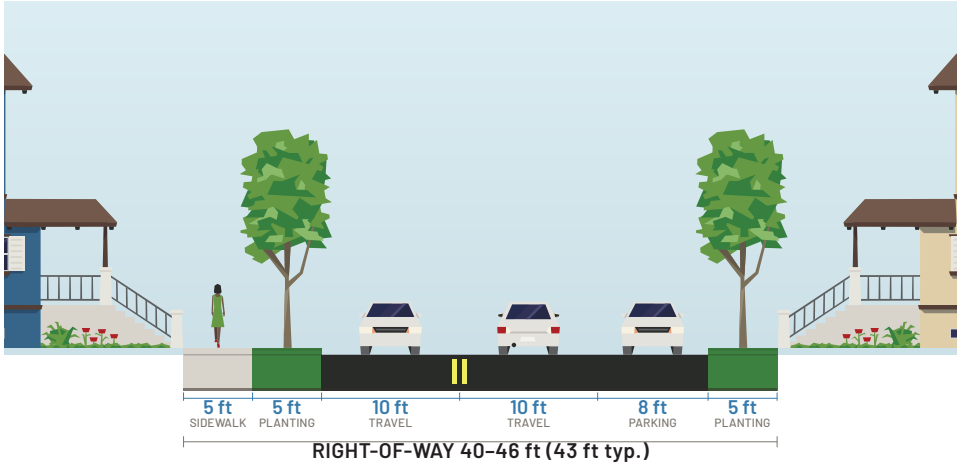
- Detached and attached buildings at shallow setbacks
- Primary entrances meet the sidewalk
- On-street parking at least one side; may be both
- Planting strips optional, either or both sides

NEIGHBORHOOD STREET

S-3

STREET TYPE · D2 · D3 · D4 · SD-Historic outside center

The most common village Street outside the Town Center, connecting residential and small-business neighborhoods with a sidewalk and planting strip on at least one side and a residential-scale design speed.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	40-46 ft	Design speed	25 mph
Traveled way	20 ft · 2 lanes @ 10 ft	Max. grade	8%
On-street parking	Permitted · one side · 7-8 ft	Max. block length	600 ft
Curb	Rolled or none	Curb return radius	15-25 ft
Planting strip	4 ft min, one side	Sight distance	Per Table 3.2
Sidewalk	5 ft min, one side	Pavement	Per Table 3.3
Street trees	Encouraged	Surface	Paved

TARGET DISTRICTS

- D2 Neighborhood Residential
- D3 Neighborhood Business
- D4 Village Residential
- SD-Historic outside the center

CHARACTER

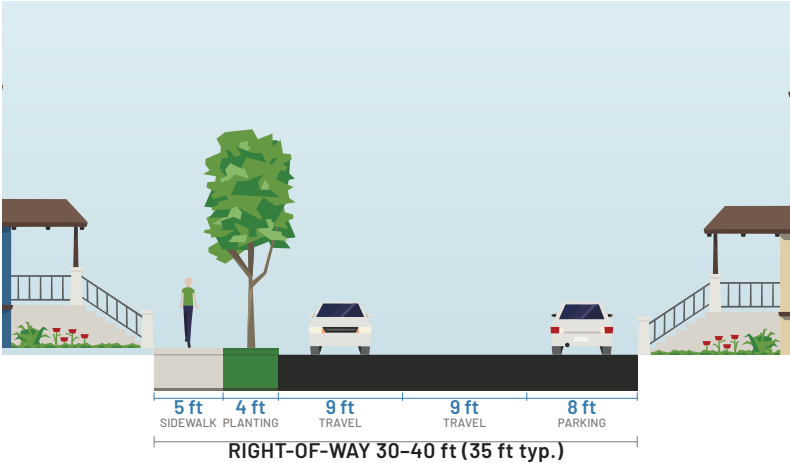
- Front setbacks consistent with the abutting District
- Sidewalk required on at least one side
- On-street parking permitted, one side
- Street trees encouraged in the furnishing zone

S-4

LANE

STREET TYPE · Internal blocks · D2 · D4 · D5 · D6 · SD-Historic · SD-Campus

A narrow, low-speed Street internal to a block that provides building frontage and access on two yield-operated travel lanes, with a required sidewalk on one side; larger than an Alley (S-5), on which buildings do not front.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	30-40 ft	Design speed	15 mph
Traveled way	16-20 ft · 2 lanes @ 8-10 ft	Max. grade	10%
On-street parking	Optional · one side · 7-8 ft	Max. block length	n/a
Curb	Rolled or none	Curb return radius	10-15 ft
Planting strip	Optional	Sight distance	Per Table 3.2
Sidewalk	5 ft min, one side	Pavement	Per Table 3.3
Street trees	Encouraged	Surface	Paved

TARGET DISTRICTS

- Mid-block segments of D2 & D4
- D5 Village Business; D6 Town Center
- SD-Historic; SD-Campus

CHARACTER

- Buildings front the Lane at shallow setbacks
- Single shared surface; opposing vehicles yield
- Optional parking one side; rolled or absent curbs
- May “punch in” to open block interiors to frontage

ALLEY

S-5

STREET TYPE · Internal service · D3-D6 · SD-Historic · SD-Fabrication · SD-Civic

A narrow service street internal to a block, providing side- and rear-lot access for parking, loading, accessory buildings, and utilities; buildings do not front on an Alley.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	16-20 ft	Design speed	10-15 mph
Traveled way	12-16 ft · 1-2 lanes @ 8-10 ft	Max. grade	10%
On-street parking	None	Max. block length	n/a
Curb	None	Curb return radius	5-10 ft
Planting strip	None	Sight distance	Per Table 3.2
Sidewalk	None	Pavement	Per Table 3.3
Street trees	Permitted	Surface	Paved

TARGET DISTRICTS

- Internal to D3-D6
- SD-Historic; SD-Fabrication; SD-Civic
- Only rear-access type permitted in D6

CHARACTER

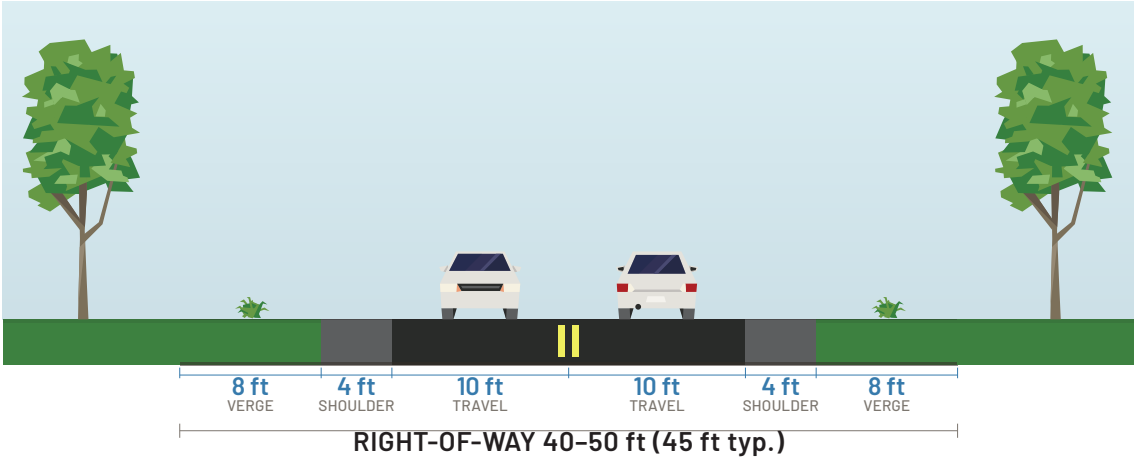
- No sidewalk and no on-street parking
- Narrow paved width; functionally low speed
- Tight curb returns sized for delivery & emergency vehicles
- Only Street Type allowed for rear-lot access in D6

R-1

CONNECTOR ROAD

ROAD TYPE · D1-D2 transition · SD-Rural Highway secondary routes

The most Street-like of the Road family, carrying through-travel in the rural-to-urban transition zone with shoulders rather than curbs, no continuous sidewalk, and a design speed higher than any Street Type.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	40-50 ft	Design speed	35 mph
Traveled way	20 ft · 2 lanes @ 10 ft	Max. grade	10%
On-street parking	None	Max. block length	n/a
Curb	None (shoulder)	Curb return radius	25-35 ft
Planting strip	Optional	Sight distance	Per Table 3.2
Sidewalk	Optional · 5 ft	Pavement	Per Table 3.3
Street trees	Permitted	Surface	Paved

TARGET DISTRICTS

- D1 Rural – D2 transition
- Secondary routes in SD-Rural Highway
- Rural connections between villages

CHARACTER

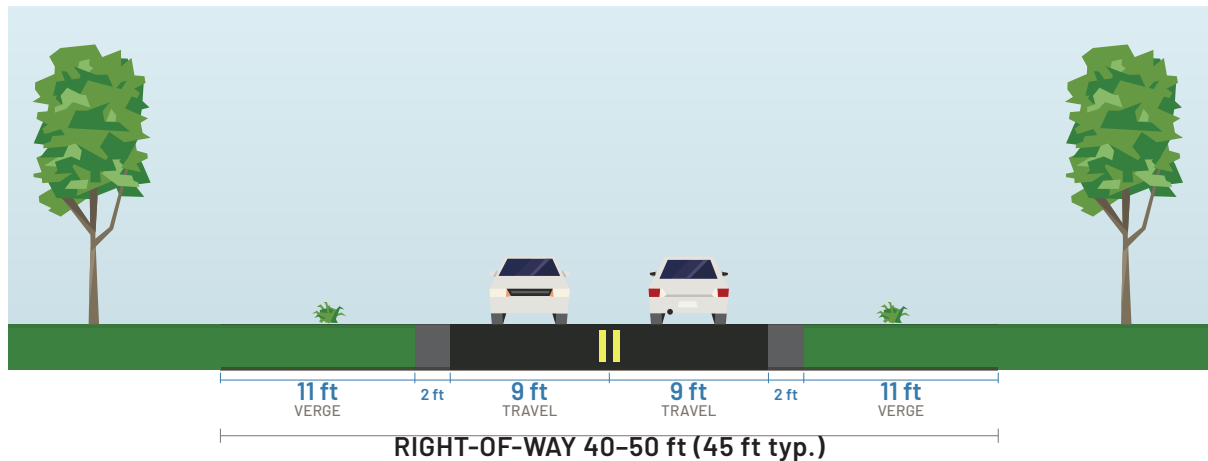
- Through-travel between villages and rural areas
- Shoulders accommodate occasional pedestrians & cyclists
- Drainage by ditches and culverts, not curb-and-gutter
- Larger building setbacks than on Streets

RURAL ROAD

R-2

ROAD TYPE · D1 Rural · SD-Conservation · rural SD-Marine

The standard rural Road, providing access to working landscapes — farmland, forest, and conservation lands — with the narrowest standard pavement, no curbs, and drainage by open ditches.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	40-50 ft	Design speed	25-35 mph
Traveled way	18-20 ft · 2 lanes @ 9-10 ft	Max. grade	12%
On-street parking	None	Max. block length	n/a
Curb	None (shoulder)	Curb return radius	25-35 ft
Planting strip	None	Sight distance	Per Table 3.2
Sidewalk	None	Pavement	Per Table 3.3
Street trees	Permitted	Surface	Paved or gravel

TARGET DISTRICTS

- D1 Rural
- SD-Conservation
- Rural SD-Marine segments

CHARACTER

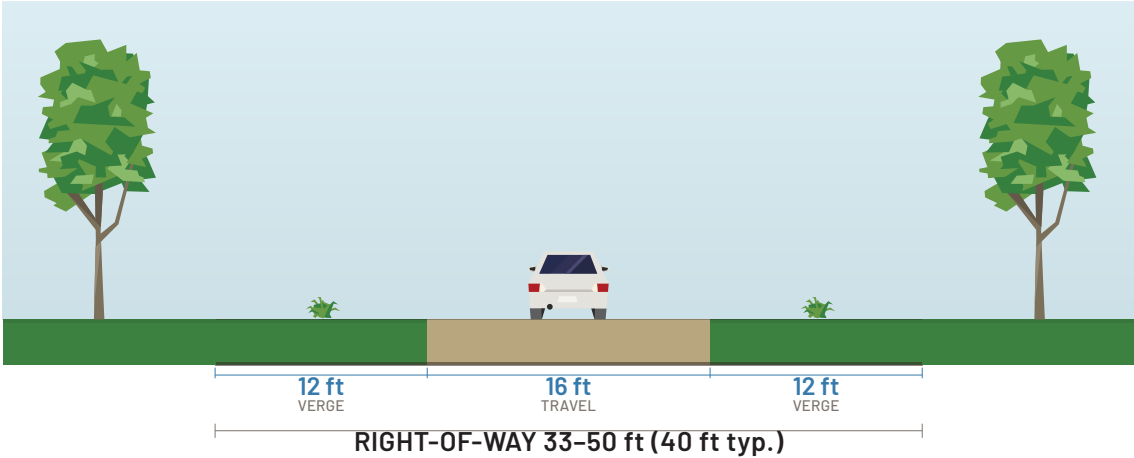
- Paved or gravel, by segment and abutting use
- Roadside vegetation generally preserved
- Driveway entrances widely spaced (large D1 frontages)
- Rural Lane (R-3) is the lower-volume variant

R-3

RURAL LANE

ROAD TYPE · D1 Rural · SD-Conservation · low-volume rural ways

A low-volume rural yield roadway — the rural counterpart to the Lane (S-4) — carrying the fewest vehicles in the Road family (generally under 400 per day) on a single shared surface or two very narrow lanes; the conforming designation for narrow historic two-rod (33 ft) ways.



Representative section at a typical right-of-way; widths are typical values within the ranges in the Design Standards below. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	33-50 ft	Design speed	15-25 mph
Traveled way	12-18 ft · 1 shared or 2 @ 8-9 ft	Max. grade	12%
On-street parking	None	Max. block length	n/a
Curb	None (shoulder + ditch)	Curb return radius	15-25 ft
Planting strip	None	Sight distance	Per Table 3.2
Sidewalk	None	Pavement	Per Table 3.3
Street trees	Permitted	Surface	Gravel acceptable

TARGET DISTRICTS

- D1 Rural
- SD-Conservation
- Low-volume rural ways & historic two-rod (33 ft) ROWs

CHARACTER

- Gravel or paved; drainage by open ditches, no curb
- Roadside vegetation generally preserved
- Passing pull-outs at ≤ 300 ft where ≤ 15 ft wide
- Conforms existing narrow rural ways to the Code

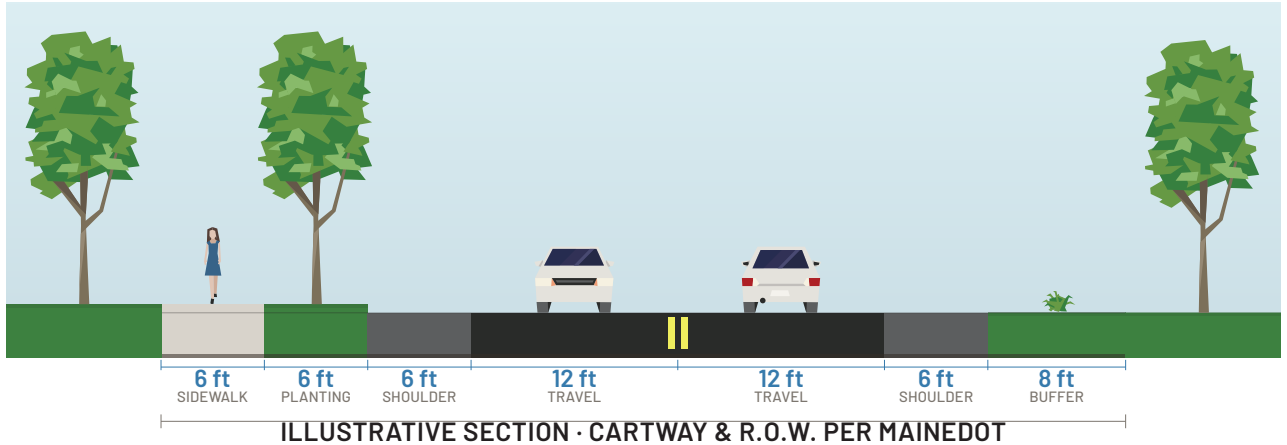
HIGHWAY COMMERCIAL

R-4

ROAD TYPE - SD-Highway Commercial - US Route 1

An auto-oriented commercial corridor where the cartway is designed and maintained by MaineDOT while the Town governs the frontage zone, setbacks, sidewalks (where feasible), and access management.

Most R-4 segments are state-aid roads; the cartway follows MaineDOT geometry. See Section 12 for the MaineDOT coordination protocol.



Illustrative section only. Cartway geometry and right-of-way for this Type are set by the Maine DOT (see §12); the Town governs the frontage zone, setbacks, sidewalks, and access management. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	Per MaineDOT	Design speed	Per MaineDOT
Traveled way	Per MaineDOT	Max. grade	Per MaineDOT
On-street parking	Not in cartway	Max. block length	n/a
Curb	Per MaineDOT	Curb return radius	Per MaineDOT
Planting strip	Per District page	Sight distance	Per Table 3.2
Sidewalk	Where feasible	Pavement	Per MaineDOT
Street trees	Encouraged	Surface	Per MaineDOT

TARGET DISTRICTS

- SD-Highway Commercial
- US Route 1 (most segments state-aid)

CHARACTER

- Large commercial buildings at deep front setbacks
- Sidewalks provided where feasible
- Managed curb cuts; MaineDOT §704 entrance permits
- Town governs frontage, setbacks & access (Art. 2)

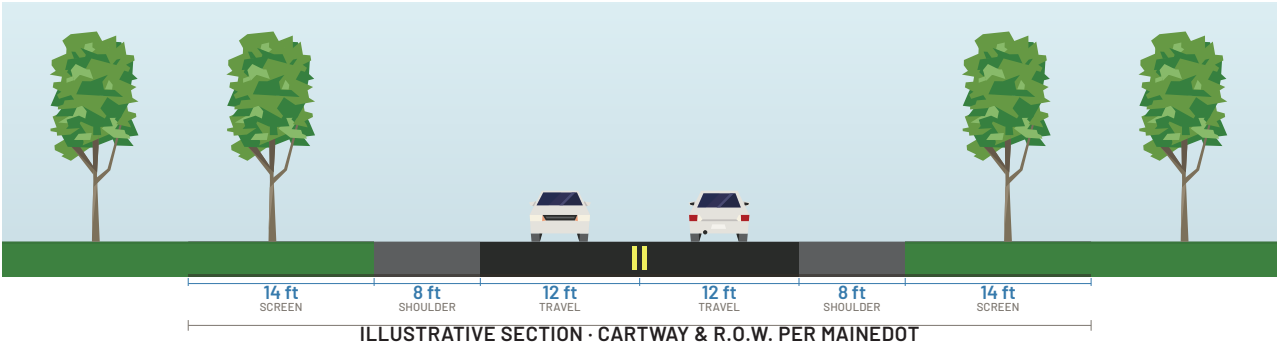
R-5

RURAL HIGHWAY

ROAD TYPE · SD-Rural Highway · US Route 1 corridor

A high-speed regional corridor through rural and conservation contexts, where MaineDOT controls the cartway and the Town preserves rural character through vegetative screening, deep front setbacks, and tightly managed curb cuts.

All R-5 segments are state-aid roads; the cartway follows MaineDOT geometry. See Section 12 for the MaineDOT coordination protocol.



Illustrative section only. Cartway geometry and right-of-way for this Type are set by the Maine DOT (see §12); the Town governs the frontage zone, setbacks, sidewalks, and access management. Cross-section illustration adapted from Streetmix (streetmix.net), © the Streetmix project, licensed CC BY-SA 4.0.

DESIGN STANDARDS

Right-of-way	Per MaineDOT	Design speed	Per MaineDOT
Traveled way	Per MaineDOT	Max. grade	Per MaineDOT
On-street parking	Not in cartway	Max. block length	n/a
Curb	Per MaineDOT	Curb return radius	Per MaineDOT
Planting strip	None	Sight distance	Per Table 3.2
Sidewalk	None	Pavement	Per MaineDOT
Street trees	Permitted	Surface	Per MaineDOT

TARGET DISTRICTS

- SD-Rural Highway
- US Route 1 rural corridor (all segments state-aid)

CHARACTER

- Vegetative screen required between cartway and development
- Deep front setbacks measured from the centerline
- Tightly managed curb-cut spacing
- MaineDOT-controlled cartway geometry (§12)

D. DRIVEWAY (D)

1. **Description.** A Driveway is a private vehicular access way from a Street or Road to the interior of a single lot, including access to homes, parking lots, or loading docks. A Driveway is not a Street or Road and is not subject to the construction specifications of Section 11.
2. **Applicability.** A Driveway provides access to no more than two single family dwellings or one two-family dwelling on a single lot, except where a shared driveway is authorized under Section 7.B.
3. **Calibration.** Driveway standards in Section 7 are calibrated by the District in which the driveway is located.

3. STREET & ROAD STANDARDS

A. PURPOSE

1. To state the rules of general application that govern the design standards carried on each Type's page in Section 2 — how ranges are read, how “per MaineDOT” entries operate, and the basis for the right-of-way widths and maximum grades.

B. APPLICABILITY

1. The design standards stated on the Type pages in Section 2, together with the rules of general application in this Section, apply to the design and construction of new streets and roads under Section 6, and to the modification of existing streets and roads under Section 14.
2. Sight distance standards (Section 8) and construction specifications (Section 11) are referenced on each Type's page but stated in full in their respective Sections.

C. GENERAL

1. Each Type's design standards are stated on that Type's page in Section 2. The rules in this Subsection govern how those standards are read and applied.
2. Where a range is given (e.g., “10-11 ft”), the value selected within the range must be supported by an engineering justification submitted with the application.
3. Where “per MaineDOT” is indicated, the Maine Department of Transportation's current geometric design standards for the applicable functional classification apply to the cartway. The Town retains authority over the frontage zone, building setbacks, sidewalks, and access management as set forth in this Article and in Article 2.
4. All measurements stated for a Type are minimums unless otherwise indicated.
5. For a Rural Lane (R-3) whose traveled way is 15 ft or narrower, passing pull-outs sufficient for two vehicles to pass, and for the deployment of fire apparatus, shall be provided at intervals of no more than 300 ft.

D. BASIS FOR RIGHT-OF-WAY WIDTHS

1. The right-of-way widths stated on the Type pages in Section 2 are calibrated to the cross-section each Type is expected to carry — traveled way, on-street parking, planting strips, sidewalks, shoulders, and drainage — together with a margin for snow storage, dry utilities, and grading. They are not a single uniform width applied without regard to context.
2. The widths remain rooted in the traditional New England rod (1 rod = 16.5 ft): a Main Street (S-1) at 66 ft is four rods, the historic town-road width of 49.5 ft is three rods, and a Rural Lane (R-3) and other narrow ways descend to the two-rod (33 ft) minimum. The ranges in this Section allow a Type to default to less than the historic three-rod width where its cross-section does not require it.
3. No Maine statute prescribes a minimum right-of-way width. 30-A MRSA §4404 requires only that a subdivision not cause unreasonable highway or

public-road congestion or unsafe conditions. These widths are set under the Town's home-rule authority (Section 1.C), and the safety-critical dimensions — traveled way width, sight distance (Section 8), and intersection geometry (Section 9) — are fixed independently of the right-of-way range.

4. These widths implement the 2018 Newcastle Comprehensive Plan, which found the Town's street standards “uniform” and directed that “new zoning will incorporate a range of street types and standards to accommodate local conditions and desired development goals” (*Streets & Roads: Road Standards = Land Use Goals*, p. 46). The calibrated rights-of-way further the Plan's call for “right-sized infrastructure” that reduces the Town's exposure to future road costs (*Less road*, p. 43), its observation that allowing “individual streets to become narrower ... slows traffic and increases vehicular and pedestrian safety” (*Connectivity*, p. 44), and its policies for a walkable, pedestrian-scaled Main Street and village center (*Claim Main Street*, pp. 73-74) and for the protection of rural character (*Natural & Built Landscape*, p. 116).

E. BASIS FOR MAXIMUM GRADES

1. The maximum grades stated on the Type pages in Section 2 are calibrated to each Type's context rather than to its ownership. The Newcastle Road, Driveway, and Entrance Ordinance, repealed concurrent with this Article, set a single maximum grade by ownership — 8% for a Public Road and 10% for a Private Road (former Table 2.2) — without regard to whether the way served a pedestrian-scaled village street or a rural conduit. This Article replaces that ownership-based figure with grades calibrated to the rural-to-urban transect.
2. The urban Street Types are held at or below the former Public-Road maximum: a Main Street (S-1) is capped at 6% and a Village or Neighborhood Street (S-2, S-3) at 8%, in the interest of pedestrian comfort, accessibility, on-street parking, and winter walkability. The rural Road Types tolerate steeper grades — a Connector Road (R-1) at 10% and a Rural Road or Rural Lane (R-2, R-3) at 12% — because they follow natural topography in low-density terrain, carry little or no pedestrian traffic, and serve the fewest lots. The repealed Ordinance itself directed that “road grades shall conform as closely as possible to the original topography”; permitting a modestly steeper rural grade honors that instruction and reduces the cut, fill, and earthwork imposed on the rural Districts (D1, D2), where this Code prioritizes minimal alteration of the landscape.
3. The steeper rural maximums relax no safety-critical standard. The 2% maximum grade within 75 ft of an intersection (Section 9), the requirement that all changes in grade be connected by vertical curves providing the minimum stopping sight distance of Table 3.2 (Section 10), and the sight-distance and intersection-geometry standards generally, are fixed independently of a Type's maximum grade and apply to every Type.
4. Grades for the Highway Commercial (R-4) and Rural Highway (R-5) cartways defer to MaineDOT design standards under Section 12, consistent with the status of US Route 1 as a State Highway.

4. OWNERSHIP CATEGORIES

A. PURPOSE

1. To distinguish the form and character of a street or road, regulated as a Type under this Article, from its statutory ownership and maintenance status.
2. To recognize the four ownership categories that exist under Maine law and Town practice, and to acknowledge that any Street or Road Type may, in principle, exist under any of these categories.

B. APPLICABILITY

1. Every street and road within the Town of Newcastle is assigned, in addition to its Type, one Ownership Category from this Section.
2. The Ownership Category of a street or road is recorded on the District Map alongside its Type.

C. CATEGORIES

1. **Town Way.** A street or road formally accepted by the Town under 23 MRSA §3022 by vote at Town Meeting. The Town maintains a Town Way and bears responsibility for repairs.
2. **Public Easement.** A street or road over which the public holds an easement under 23 MRSA §3021, sometimes referred to historically as a “private way.” The public has the right of access but the Town does not bear maintenance responsibility.
3. **Private Road.** A street or road in fully private ownership over which no public access right exists. Maintenance is the responsibility of the private owner or association.
4. **State Highway.** A street or road owned and maintained by the State of Maine through the Maine Department of Transportation. US Route 1 within Newcastle is a State Highway. State Highways are subject to the coordination protocol in Section 12.

D. RELATIONSHIP TO TYPE

1. The Type of a street or road describes its form, character, and design standards. The Ownership Category describes its statutory ownership and maintenance status. The two designations are independent: a Main Street (S-1) may be a Town Way, a Public Easement, or a State Highway; a Rural Road (R-2) may be a Town Way or a Private Road.
2. Where the standards of this Article conflict with the standards or practices applicable to a particular Ownership Category — for example, with MaineDOT design standards for a State Highway, or with the terms of a Public Easement instrument — the provisions of Section 12 (Coordination with MaineDOT) and Section 4.E (below) apply.

E. PROCESS FOR CHANGING OWNERSHIP

1. The acceptance of a Private Road or Public Easement as a Town Way is a Town Meeting matter and is processed under Article 8 §20 Land Conveyance.
2. Discontinuance of a Town Way is processed under 23 MRSA §3026-A and Article 8 §27 Planning Board.
3. Changes in Ownership Category do not by themselves change the Type of a street or road. The Type is set under Section 5 or Section 6 and is reviewed only under Section 14.B (Reclassification).

5. CLASSIFICATION OF EXISTING STREETS & ROADS

A. PURPOSE

1. To assign, at adoption of this Article, a Type and an Ownership Category to every existing street and road within the Town of Newcastle.
2. To provide a process for reviewing and updating the classification of a street or road over time.

B. APPLICABILITY

1. Applies to every named street and road segment within the Town of Newcastle at the effective date of this Article.
2. A street or road segment is defined as the length of a named street or road between two principal intersections.

C. INVENTORY OF EXISTING STREETS AND ROADS

1. The Town shall maintain an Inventory of Existing Streets and Roads listing, for every street and road segment in Newcastle, the following information:
 - a. Segment name and termini.
 - b. Type assigned under this Article.
 - c. Ownership Category.
 - d. Approximate right-of-way width.
 - e. Approximate traveled way width.
 - f. Adjacent District(s).
 - g. MaineDOT functional classification, where the segment is a state-aid road.
 - h. Notes on nonconformity, where the segment does not currently meet the standards of its assigned Type.
2. The Inventory is incorporated by reference into the District Map as Exhibit 3.1 and is treated as a Special Requirement under Article 2 §4.
3. The initial Inventory is adopted concurrently with this Article. Subsequent amendments to the Inventory are processed under Section 5.E (Reclassification).

D. CLASSIFICATION RUBRIC

1. The Type assigned to an existing segment is determined by applying the following rubric, in the order listed:
 - a. **Adjacent District test.** A segment whose abutting parcels are predominantly in a given District is provisionally classified as the Type targeted for that District in Section 2 (see also the District-Type cross-reference in Table 3.4).
 - b. **Built character test.** Where the abutting built form indicates a character at variance with the Adjacent District test — for example, a segment within D2 whose abutting parcels are uniformly rural in character — the Type is adjusted to match the built character.
 - c. **Right-of-way and cartway test.** Where the existing right-of-way and cartway widths preclude one Type but are consistent with another, the Type is set to the closest match permitted by physical constraints, and the segment is recorded as nonconforming under Section 14.
 - d. **MaineDOT functional class test.** A segment carrying a MaineDOT functional classification of Principal Arterial or Minor Arterial is presumed to be R-4 (Highway Commercial) or R-5 (Rural Highway) depending on its abutting District. A Collector classification is presumed to be R-1 (Connector Road). A Local classification is presumed to follow the Adjacent District test.
 - e. **Tie-breaker.** Where the above tests produce conflicting indications, the Planning Board determines the Type after a public hearing, considering the long-term character intent of the abutting District(s).

TABLE 3.4 DEFAULT TYPE BY DISTRICT (CLASSIFICATION GUIDE)

District	Default Street/Road Type(s)
D1 Rural	R-2 Rural Road; R-3 Rural Lane on low-volume segments; R-1 Connector Road on transition segments
D2 Neighborhood Residential	S-3 Neighborhood Street; S-4 Lane on mid-block segments; R-1 Connector Road on edge segments
D3 Neighborhood Business	S-3 Neighborhood Street; S-2 Village Street on center segments
D4 Village Residential	S-3 Neighborhood Street; S-4 Lane on mid-block segments; S-2 Village Street on center segments
D5 Village Business	S-2 Village Street; S-1 Main Street on designated segments; S-4 Lane internal to blocks
D6 Town Center	S-1 Main Street; S-4 Lane and S-5 Alley internal to blocks
SD-Historic	S-2 Village Street center; S-3 Neighborhood Street outside center
SD-Conservation	R-2 Rural Road; R-3 Rural Lane on low-volume segments
SD-Highway Commercial	R-4 Highway Commercial
SD-Rural Highway	R-5 Rural Highway
SD-Campus	S-3 Neighborhood Street; S-4 Lane and S-5 Alley internal
SD-Marine	S-3 Neighborhood Street; R-1 Connector Road on access segments
SD-Fabrication	S-3 Neighborhood Street; S-5 Alley internal
SD-Civic	Type follows adjacent District

E. RECLASSIFICATION

- The Type assigned to an existing street or road segment may be changed only by:
 - Amendment of the District Map under Article 8 §21 Zoning Amendment, processed as a Town Meeting matter; or
 - Reclassification under this subsection where, in connection with a proposed alteration or improvement, the abutting District has been amended or the built character has demonstrably changed such that the current Type no longer reflects either.
- A reclassification petition may be submitted by:
 - The Planning Board.
 - The Code Enforcement Officer.
 - The Road Commissioner.
 - A property owner whose lot abuts the segment.
 - 10% of the number of voters who voted in the Town of Newcastle in the last gubernatorial election.
- Reclassification petitions are reviewed by the Planning Board at a public hearing with abutter notice under Article 8 §5. The Planning Board makes a written recommendation to the Board of Selectmen, who may place the petition on the warrant of the next Town Meeting.

6. NEW STREETS & ROADS

A. PURPOSE

- To establish the process and standards for the design and construction of new streets and roads within the Town of Newcastle.

B. APPLICABILITY

- Applies to:
 - The construction of any new street or road within the Town.
 - Substantial reconstruction of an existing street or road, where the reconstruction alters the cartway width, right-of-way width, or fundamental design speed.
- Does not apply to:
 - General maintenance of an existing street or road, including patching, resealing, restriping, and shoulder reshaping that does not alter the standards listed in Section 6.B.1.b.
 - Driveway construction or alteration, which is regulated under Section 7.

C. TYPE ASSIGNMENT AT TIME OF DESIGN

- The Type of a new street or road must be assigned at the time of design, before construction drawings are prepared.
- The Type assignment is made by the applicant in consultation with the Code Enforcement Officer and Road Commissioner, based on the abutting District, the intended built character, and the Default Type by District guide in Table 3.4.
- Where the new street or road serves a Subdivision, the Type assignment is reviewed and approved by the Planning Board as part of the Subdivision Plan under Article 8 §12.
- Where the new street or road is a state-aid road, MaineDOT coordination is required under Section 12 prior to Type assignment.

D. DESIGN STANDARDS

- The design of a new street or road must conform to the design standards stated for the assigned Type on that Type's page in Section 2, to the rules of general application in Section 3, and to the construction specifications of Section 11, except as modified under Section 12 for state-aid roads.
- Engineering plans must be prepared and stamped by a Maine-licensed civil engineer.
- Plans must be reviewed and approved by the Road Commissioner prior to issuance of a Zoning Permit for street or road construction.

E. CONSTRUCTION AND INSPECTION

- Construction must be supervised by a Maine-licensed civil engineer contracted by the Town at the expense of the applicant.
- The Road Commissioner inspects required improvements during and at the completion of construction.
- Upon completion, the supervising engineer certifies in writing to the Road Commissioner that all required improvements have been constructed in accordance with the approved plans.

F. ACCEPTANCE AS A TOWN WAY

- A new street or road constructed under this Section is presumed to remain a Private Road unless and until it is formally accepted as a Town Way by vote at Town Meeting under 23 MRSA §3022.
- The cost of any improvements required to bring the street or road up to current Town Way acceptance standards shall not be borne by the Town.
- The Town is not obligated to accept any privately constructed street or road as a Town Way.

7. DRIVEWAYS

A. PURPOSE

- To provide standards for vehicular access to lots.

STREETS, ROADS & DRIVEWAYS

- To preserve the safe transition of vehicles between a Driveway and the abutting Street or Road, calibrated by the District.

B. APPLICABILITY

- Applies to new Driveways and to the relocation of existing Driveways.
- Does not apply to the general maintenance of an existing Driveway, including patching, resealing, and grading.

C. GENERAL

- A Driveway provides access only from a Street or Road of a Type defined in Section 2 to the interior of a single lot.
- A Residential Companion use may share a Driveway with the primary dwelling unit on the same lot.
- Abutting lots may share a Driveway provided that an access easement exists between all owners and the shared Driveway complies with the entrance standards in Section 8.
- A Driveway may pass through required front, side, and rear setbacks to access permitted parking locations.
- One Driveway is permitted per building lot or virtual lot.
- In D1 Rural and D2 Neighborhood Residential, more than one Driveway per lot is permitted, subject to the entrance spacing standards in Section 8.

D. DESIGN

- All Driveways must comply with the entrance standards of Section 8 and the intersection standards of Section 9.
- Driveways must be constructed to prevent water run-off onto the adjacent Street or Road.
 - In Districts D1, D2, and rural Special Districts, a Driveway may be sloped no greater than 3% above or below the adjacent cartway for the first 20 ft of the Driveway.
 - In Districts D3 through D6 and in urban Special Districts, the first 10 ft of a Driveway must match the slope and grade of the abutting sidewalk or, where no sidewalk is present, the abutting shoulder.
- Where the Permitting Authority determines that a Driveway culvert is necessary, the applicant shall bear the burden of the cost for the culvert installation, which shall be constructed to the standards of Section 10.

E. CALIBRATION BY DISTRICT

- Driveway maximum width is calibrated by District as follows:
 - D1, D2, R-1/R-2/R-3 corridors: 24 ft max
 - D3, D4, S-3 corridors: 20 ft max
 - D5, D6, S-1/S-2 corridors: 12 ft max within the frontage zone (may flare beyond the frontage zone)
 - SD-Highway Commercial, SD-Rural Highway: 30 ft max with MaineDOT entrance permit

8. ENTRANCES

A. PURPOSE

- To provide standards for the safe transition of vehicles at the point of intersection where Driveways, parking lots, and access ways meet a Street or Road.

B. APPLICABILITY

- Applies to any new access to a lot from a Street or Road, whether utilizing a Driveway or a parking lot.

C. GENERAL

- An entrance onto a State Highway (R-4 or R-5) must be approved by the Maine Department of Transportation in accordance with 23 MRSA §704. A copy of MaineDOT approval shall be submitted to the Permitting Authority at the time of application review.
- Entrance standards apply to the first 20 ft of the Driveway, road, or parking lot that intersects the Street or Road.

D. DESIGN

- All entrances must be designed and constructed in accordance with the latest Maine Department of Transportation's Manual for Standard Specifications.
- No part of the entrance shall extend beyond the property lot frontage.
- Entrance side slopes and banks shall not be steeper than a horizontal to vertical ratio of 2:1.

E. INTERSECTION ANGLE

- Entrances shall intersect the adjacent Street or Road at a horizontal angle of 90 degrees.
 - Proposed horizontal angles of intersection less than 90 and greater than 75 degrees may be permitted by Special Permit.
 - Angles of intersection less than 75 degrees shall not be permitted.

F. LOCATION

- All entrances shall be so located that vehicles approaching or using the entrance:
 - Shall be able to obtain unobstructed sight distance in both directions along the adjacent Street or Road in accordance with Table 3.2 Sight Distance.
 - Shall be able to maneuver safely without interference with traffic.
- Entrances shall not be constructed within the following distances of an intersection:
 - 75 ft of an un-signalized intersection.
 - 125 ft of a signalized intersection.

G. SIGHT DISTANCE

- Entrances shall be placed such that an exiting vehicle has an unobstructed view in both directions along the adjacent Street or Road in accordance with Table 3.2.
- Sight distance shall be measured as follows:
 - From a point of origin 4 ft above ground, 10 ft from the edge of the shoulder of the adjacent Street or Road, at the horizontal center of the proposed entrance.
 - To a point 4 ft above ground, measured in a straight line along the Street or Road, farthest from the point of origin that can be seen without obstruction.

TABLE 3.2 SIGHT DISTANCE

Design Speed (MPH)	Sight Distance (FT)
20	155
25	200
30	250
35	305
40	360
45	425
50	570
60	645

H. CURB RADIUS

- Entrances shall have a curb radius of 35 ft along the edge of intersection between the entrance and the adjacent traveled way, except where modified by the Type-pair geometry in Section 9.

9. INTERSECTIONS**A. PURPOSE**

- To establish geometric standards for intersections between Streets and Roads, calibrated to the Type of each intersecting facility.

B. APPLICABILITY

- Applies to all new intersections and to substantial reconstruction of existing intersections within the Town.
- Intersections with State Highways (R-4 or R-5) are subject to MaineDOT review under Section 12.

C. GENERAL

- The curb return radius at an intersection of two Streets or Roads is determined by the more urban Type of the two intersecting facilities, per the curb return radius stated on each Type's page in Section 2.
- At intersections between a Street Type and a Road Type, the curb return radius is determined by the Road Type, except where the Road Type connects directly to a D5 or D6 District frontage, in which case the Street Type's radius applies.
- Maximum grade within 75 ft of any intersection shall not exceed 2%.
- Minimum angle of intersection between any two Streets or Roads shall be 75 degrees, with 90 degrees preferred.
- Minimum radius along the right-of-way edge at intersections is 10 ft for Streets and 15 ft for Roads.

D. SIGHT DISTANCE AT INTERSECTIONS

- Sight distance at an intersection shall comply with Table 3.2 for the higher design speed of the two intersecting facilities.

10. WATER MANAGEMENT**A. PURPOSE**

- To provide for the conveyance, control, and disposal of surface waters in the right-of-way of Streets and Roads, while protecting downstream water quality and aquatic habitat.

B. APPLICABILITY

- Applies to all new Streets and Roads under Section 6 and to the substantial reconstruction of existing Streets and Roads.

C. GENERAL

- Streets and Roads shall be designed to provide for the conveyance, control or disposal of surface waters including but not limited to the installation of ditches, culverts, catch basins, and piping systems consistent with their Type.

D. CULVERTS

- Culverts are required for the proper movement and removal of water adjacent to Streets and Roads to ensure safe travel conditions and protect the integrity of the road surface and subsystem.
- Culverts shall have the following standards:

- Culverts must extend beyond the combined width of the traveled way and shoulders by 18 inches on both sides.
- Culvert diameter shall be a minimum of 15 inches and placed at stream bed level over a prepared base.
- Culverts shall be constructed to enable unobstructed fish passage in either direction.

E. DITCHES

- Ditches shall be designed and maintained with flow lines that are 2 ft below the sub-grade breakpoint.
- Ditches and embankments shall be seeded with erosion control landscaping.

F. GRADE CHANGES

- Streets and Roads shall be constructed so that all changes in grade shall be connected by vertical curves in order to provide a minimum stopping sight distance per Table 3.2.

11. CONSTRUCTION STANDARDS**A. PURPOSE**

- To provide engineering specifications for the construction of Streets and Roads consistent with their Type.

B. APPLICABILITY

- Applies to the construction of new Streets and Roads under Section 6 and to the substantial reconstruction of existing Streets and Roads under Section 14.
- Construction of state-aid roads (R-4 and R-5) is governed by MaineDOT specifications per Section 12.

C. GENERAL

- Streets and Roads shall remove stumps and rocks over 6 inches in diameter from a depth not less than 18 inches below the finished top.
- All newly constructed Streets and Roads remain Private Roads until they are formally accepted as a Town Way per Section 6.F.

TABLE 3.3 CONSTRUCTION SPECIFICATIONS BY TYPE

Specification	S-1 / S-2 / S-3 (Town Way)	S-4 / S-5 (Lane / Alley)	R-1 Connector	R-2 / R-3 (Rural)	Driveway
Construction					
Aggregate sub-base course	18"	12"	18"	12"	n/a
Crushed aggregate base course	3"	3"	3"	3"	n/a
Hot Bituminous Pavement					
Total HBP thickness	2½"	2"	2½"	2" or gravel surface	n/a
Base course	1½"	1"	1½"	1"	n/a
Surface course	1"	1"	1"	1"	n/a

STREETS, ROADS & DRIVEWAYS

D. R-4 AND R-5 CONSTRUCTION

1. Construction of new R-4 and R-5 segments and substantial reconstruction of existing R-4 and R-5 segments shall conform to MaineDOT specifications for the applicable functional classification.
2. Where MaineDOT specifications are less stringent than this Section for any element under Town authority (frontage zone, sidewalks, planting strips, access management), this Article controls for those elements.

12. COORDINATION WITH MAINE DOT

A. PURPOSE

1. To establish the coordination protocol between the Town of Newcastle and the Maine Department of Transportation for state-aid roads.

B. APPLICABILITY

1. Applies to all R-4 (Highway Commercial) and R-5 (Rural Highway) segments.
2. Applies to any entrance from a Driveway, Street, or Road onto a State Highway.

C. AUTHORITY DIVISION

1. **MaineDOT controls** the geometric design and construction of the cartway, shoulders, drainage within the cartway, and signage of State Highways, in accordance with MaineDOT's current Highway Design Guide and applicable federal standards.
2. **The Town controls**, through this Article and Article 2, the frontage zone, building setbacks, sidewalks (where present), planting strips, street trees, and access management (curb cut spacing and location) along State Highways.
3. Where a conflict arises between MaineDOT requirements and Town requirements for the same physical element, MaineDOT controls within the right-of-way and the Town controls outside the right-of-way.

D. ENTRANCE PERMITS

1. An entrance onto a State Highway requires a MaineDOT entrance permit under 23 MRSA §704 in addition to any permit required by this Article.
2. The applicant shall submit a copy of the MaineDOT entrance permit to the Permitting Authority before the Zoning Permit is issued.

E. FUNCTIONAL CLASSIFICATION

1. MaineDOT's functional classification of a segment (Principal Arterial, Minor Arterial, Major Collector, Minor Collector, Local) is independent of the Type assigned under this Article. The Type addresses form and character; the functional classification addresses transportation function for federal funding purposes.
2. The Town may consider MaineDOT functional classification as one factor in the classification rubric of Section 5.D.

13. ADMINISTRATION

A. PURPOSE

1. To describe the powers and duties of the review bodies for matters under this Article, and to coordinate Article 3 permitting with the development review framework of Article 8 (Administration).

B. APPLICABILITY

1. Applies to all permits and approvals under this Article.

C. PERMITTING AUTHORITY

1. The Code Enforcement Officer reviews and approves:
 - a. Driveway construction and relocation permits.
 - b. Entrance permits.
 - c. General maintenance permits where required.
2. The Planning Board reviews and approves:
 - a. Construction of new Streets and Roads under Section 6.
 - b. Substantial reconstruction of existing Streets and Roads under Section 14.
 - c. Reclassification petitions under Section 5.E.
3. The Road Commissioner reviews and certifies all construction-phase work.

D. INSPECTIONS

1. There shall be at least one on-site inspection by the Permitting Authority or their representative during construction, with the assistance of the applicant's engineer. The applicant's engineer shall certify completion and compliance with the standards of this Article.

E. APPLICATION FEES

1. The application fee shall be the amount included in the Town's fee schedule.

F. PERMIT VALIDITY

1. A permit issued under this Article shall be valid for a period of twelve months from the date of original issue.

G. APPEALS

1. Whenever a person shall deem themselves aggrieved by an order made by the Permitting Authority:
 - a. The person may file an appeal to the Board of Appeals within 10 days of the date of the order.
 - b. The person shall be afforded a hearing on the matter before the Board of Appeals.
 - c. Unless by their authority the aggrieved order is revoked, such order shall remain in force and be forthwith complied with by the person.

H. WAIVERS

1. The Permitting Authority may grant waivers from the dimensional standards stated for an assigned Type (Sections 2 and 3) as explicitly authorized in this Article and in accordance with Section 1.D Compliance, but may not grant waivers from the sight distance standards of Section 8.G or from the State Highway entrance permit requirement of Section 12.D.

14. NONCONFORMING STREETS & ROADS

A. PURPOSE

1. To provide for the continued operation of existing Streets and Roads that do not currently meet the standards of their assigned Type, and to specify the conditions under which conformity is required.

B. APPLICABILITY

1. Applies to all Streets and Roads classified under Section 5 that do not currently meet one or more standards of their assigned Type as set forth on the Type's page in Section 2 or in Section 11 (Construction Standards).

C. CONTINUATION

1. A nonconforming Street or Road may continue to operate in its existing condition.

2. General maintenance — including patching, resealing, restriping, shoulder reshaping, and culvert replacement — is permitted without bringing the Street or Road into conformity.

D. SUBSTANTIAL RECONSTRUCTION

1. Substantial reconstruction of a nonconforming Street or Road requires conformity with the standards of the assigned Type, except as follows:
 - a. Where the existing right-of-way precludes a Type Standard from being met without taking additional land, the standard may be modified by the Permitting Authority to the extent necessary to fit within the existing right-of-way.
 - b. The Code Enforcement Officer or Planning Board may require the reservation of a 20 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of pedestrian traffic or utilities.
 - c. The Permitting Authority may require the reservation of a 50 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of the road.
2. "Substantial reconstruction" is defined in the same manner as in the prior Newcastle Road, Driveway, and Entrance Ordinance, namely: improvements to a previously constructed Street or Road, including but not limited to extensions to the length or width, the rip up and replacement of sub-surface road building materials for a length or section of the Street or Road that goes beyond activities associated with General Maintenance, the addition of sidewalks or wholesale rebuilding of pre-existing sidewalks, or a change from one permanent road surfacing material to another such as from dirt to asphalt, asphalt to concrete, or asphalt to dirt.

E. RECLASSIFICATION TO RESOLVE NONCONFORMITY

1. Where a nonconforming Street or Road cannot reasonably be brought into conformity with its assigned Type, a reclassification petition may be filed under Section 5.E to assign a Type that more accurately reflects the segment's current and likely future character.

F. ACCEPTANCE OF A NONCONFORMING PRIVATE ROAD AS A TOWN WAY

1. A Private Road that does not meet the construction standards of Section 11 for its assigned Type may not be accepted as a Town Way until the road is reconstructed to meet those standards.
2. The cost of such reconstruction shall not be borne by the Town.
3. No road shall be accepted as a Town Way without a formal vote to accept it at Annual Town Meeting.